

25LBCV02553 25LBCV02553

County: los-angeles

Division: Civil Law and Motion

Department: S28

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Case Number: 25LBCV02553 Hearing Date: September 8, 2026 Dept: S28

BACKGROUND

On

September 12, 2025, Plaintiff

filed a complaint against Defendant alleging violations of the Song-Beverly Consumer Warranty Act, breach of the implied warranty of merchantability, and fraudulent inducement – concealment.

On

June 17, 2026, Defendant filed the instant Motion for Summary Judgment/Adjudication.

On

August 20, 2026, Plaintiff filed an opposition.

As

of September 4, 2026, Defendant has not filed a reply.

DISCUSSION

Applicable

Law

The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atlantic Richfield Co. (2001) 25

Cal.4th 826, 843.) “Code of Civil Procedure section 437c,

subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

"In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom [citation] and must view such evidence [citations] and such inferences [citations] in the light most favorable to the opposing party." (Aguilar, supra, at pp. 844-845 [quotation marks omitted].)

"On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) "A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." (Code Civ. Proc. § 437c, subd. (p)(2).)

To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.) "If the plaintiff cannot do so, summary judgment should be granted." (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

Analysis

A.

Defective

Notice of Motion and Separate Statement as to Summary Adjudication

Defendant's notice of motion

indicates that Defendant moves for "summary judgment or, in the alternative, for summary adjudication on each cause of action of Plaintiff's Complaint and the claim for punitive damages ..."

Defendant's notice of motion does not specify what issues it seeks to have adjudicated, and its separate statement does not comply with CRC 3.1350(b) and (h), which require the notice of motion to set forth each issue to be adjudicated and the separate statement to repeat the issues verbatim.

To

the extent this is a motion for Summary Adjudication, it is summarily DENIED.

B.

Failure

to Carry Burden as to Summary Judgment

As to Summary Judgment, Defendant

fails to put forth any argument as to the second and third causes of action. If the Court cannot grant the instant motion as to each and every cause of action at issue, then the Court cannot grant Summary Judgment. Thus, the Motion for Summary Judgment is DENIED with prejudice.

CONCLUSION

Defendant's Motion for Summary Judgment is

DENIED due to its failure to address the second and third causes of action.

The alternative motion for Summary

Adjudication is DENIED due to Defendant's failure to adequately notice the motion and file a proper separate statement in support of the motion.

Moving party to give notice.